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REGISTRAR OF VOTERS
COUNTY [redacted]A CLARA
By_____Deputy

MEASURE C
CITY OF SANTA CLARA PROPOSED CHARTER AMENDMENT
CITY ATTORNEY'S IMPARTIAL ANALYSIS

Summary
Measure C is an amendment to the City Charter proposed by the City Council to update rules governing public works contracting. Key provisions would: (1) increase the contract threshold for Council approval from $1,000 to $250,000, (2) retain competitive bidding, but with the ability to waive certain requirements, and (3) allow the use of alternative procurement mechanisms, for example "design-build" contracts, when determined by Council to be in the City's best interests. These amendments would be implemented through a City Council adopted ordinance.

A "yes" vote on this measure would replace existing City Charter public works rules with the updated rules summarized above.
A "no" vote on this measure would retain existing Charter public works rules without amendment.
To pass, the measure requires 50% plus one of votes cast.

Current Charter Provisions
Charter Section 1310 contains current City rules for public works contracting. Key provisions include:

(1) Council approval required for contracts exceeding $1,000;
(2) Advertisement for bids in an official newspaper required, with waivers allowed only where Council finds an "urgent necessity;"
(3) All contracts awarded to the lowest responsible bidder;
(4) City employees may construct public works, but only with Council approval for project values exceeding $1,000.

Per City records, these provisions were originally enacted in 1952 and have not been modified since.

Proposed Charter Revisions
Measure __ would replace existing Charter rules governing public works with new rules as follows:

(1) The threshold for Council approval would be increased from $1,000 to $250,000 ("Major Projects"). The City Manager would approve contracts valued at less than $250,000 ("Minor Projects").
(2) Competitive bids would still be required for most contracts, with advertisement for bids and formal bidding required for all "Major Projects;" however, exceptions could be allowed if justified (e.g., where a limited number of contractors were qualified to perform required work).
(3) Contracts would continue to be awarded to the lowest responsive/responsible bidder; however, exceptions would be allowed for "best value" contracting mechanisms, for example, design-build, where, instead of a separate design contract and a construction contract awarded to the low bidder, one contract is awarded to a design/construction team determined to be the most qualified bidder.
(4) The ability for City employees to perform public works would be retained, with City Council approval required for Major Projects and City Manager Approval for Minor Projects.

If voters approve this measure, more specific implementing rules would be prepared by City staff, presented for Council adoption, and incorporated into the City Code.

Projected Cost Savings

If approved, the measure is projected to generate cost savings resulting from reductions in staff time no longer required to present for Council action public works projects valued at less than $250,000. For certain types of projects cost savings may also be generated through use of "best value" contracting.

This City Attorney's Impartial Analysis provides a summary of the proposed measure. For details, reference should be made to the full text. Additional information can also be found on the City's website at https://www.santaclaraca.gov/our-city/government/city-committees/charter-review-committee-charter-project/charter-review-committee-charter-project-measure-proposed-charter-amendment-information.

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